

2014 SCC OnLine All 11652

(BEFORE SUNIL AMBWANI AND DINESH MAHESHWARI, JJ.)

Mohammad Khalid Petitioner

v.

Pashchimanchal Vidhyut Vitran Nigam Ltd. &
Another Respondents

Counsel for Petitioner:- R.P.S. Chauhan

Counsel for Respondent:- Pranjal Mehrotra, Pranjal Mehrotra

Writ - C No. - 37041 of 2014

Decided on July 21, 2014

Hon'ble Sunil Ambwani, J.

Hon'ble Dinesh Maheshwari, J.

1. We have heard Sri. R.P.S. Chauhan for the petitioner. Sri. Pranjal Mehrotra appears for respondents.

2. It is submitted by Sri. R.P.S. Chauhan, learned counsel appearing for the petitioner, that the petitioner has electricity connection of 44 KVA, in his premises, for his export office.

3. In this writ petition, the petitioner has prayed for a direction to respondent No. 2, to consider and decide the objection/complaint of petitioner dated 26.6.2014, under the provisions of clause 6.5 of the Electricity Supply Code 2005, by making reasoned and speaking order after affording opportunity of hearing to the petitioner, within the stipulated time of 7 days, and for restoring the electricity connection forthwith.

4. It is submitted that respondent No. 2 was required to decide the representation within seven days as per clause 6.5 of the Electricity Supply Code 2005. The respondents have disconnected electricity connection and have not decided the same despite order of this Court passed on 08.05.2014, passed in Writ Petition. 25996 of 2014.

5. We find that the petitioner had approached this Court earlier in Writ Petition No. 25996 of 2014, which was disposed of on 8.5.2014 with directions that if the petitioner approaches the competent authority under clause 6.5 of the Electricity Supply Code 2005 against the demand notice, the same will be decided. We find that the petitioner took more than one and half months in approaching the competent

authority under clause 6.5. This writ petition has been filed for the same cause of action, which was available before him on 8.5.2014 with an additional cause of action of disconnection of electricity supply, which is attributable solely to the petitioner, as he did not make objection in compliance of the order within reasonable time.

6. We also find that clause 6.5 (b) of the Electricity Supply Code 2005, requires deposit to be made under protest for deciding representation.

7. We accordingly dispose of this writ petition with direction to respondent No. 2 to decide the pending representation in accordance with law within seven days from the date a certified copy of this order is presented before the office of respondent 2. The deposit made by the petitioner under protest, will be adjusted in the payment to be made by him in accordance with decision on the representation.

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